

Court No. - 1

Case :- WRIT - C No. - 5723 of 2020

Petitioner :- Saddam

Respondent :- State Of U.P. And 03 Others

Counsel for Petitioner :- Uttar Kumar Goswami

Counsel for Respondent :- C.S.C., Krishna Agarawal

Hon'ble Ramesh Sinha, J.

Hon'ble Ajit Kumar, J.

Supplementary affidavit filed today in Court, is taken on record.

Heard Sri U.K.Goswami, learned counsel for the petitioner, Sri S.K.Tripathi, learned counsel appearing for the respondent Power Corporation and perused the record.

Learned counsel for the petitioner has come up before this Court disputing the bill, which is in question.

Sri S.K.Tripathi, learned counsel appearing for the Electricity Department has raised preliminary objection that the petitioner has alternative remedy to file representation before the appropriate authority under Clause 6.5 read with 6.18 of the U.P. Electricity Supply Code, 2005 and against the order passed thereunder, the petitioner has remedy to approach Consumer Grievance Redressal Forum.

In view of the above, we dispose of the writ petition with liberty to the petitioner that in the event he applies for under Clause 6.5 read with 6.18 of the U.P. Electricity Supply Code, 2005 against the disputed bill within ten days from today along with certified copy of this order the same shall be considered in accordance with law and shall be disposed of within a further period of six weeks.

(Ajit Kumar, J.) (Ramesh Sinha, J.)

Order Date :- 17.2.2020

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